The Courtyard Management Company
Rock Lane Farm (CMC)

MINUTES: CMC Residents Meeting

Meeting Date: 7 December 2014
Chair: Jonathan Pope

Actions in Progress
Actions Completed

The Courtyard Management Company (CMC)

Attendees:
Eva Speight (2), Ian Woodland and Bruno Viegas (3), Jonathan Pope (4), John Jeffers (5), Nigel Hallam (8), Ian Bickers (11), Ian Morrison (12), Kevin Smith (13)

Apologies:
Eileen Davis (1), Alan Pike (6), Bart Shaw & Mike Tear (7), Dean and Gloria McCann (9), Malcolm and Julia Wynd (10)

No Communication:
Colin Sutherland and Julie Bedford (14)

Actions Agreed
ACTION 1: CMC to determine the costs of replacing the biofilter and its pumps over its lifespan to assess whether the annual contributions towards the sinking fund are appropriate
ACTION 2: Ian Woodland to send invoices to members for the 2015 £900 management charge with payment instructions
ACTION 3: Jonathan Pope to contact Thameside with a request that they seek contributions from the cottages towards the costs incurred by CMC for the biofilter (servicing and discharge consent)
ACTION 4: CMC to move the sinking fund to a savings account, and place the 2014 underspend in another savings account
ACTION 5: CMC to appoint same book-keeper to prepare 2014 accounts for submission to Companies House
ACTION 6: CMC to commission repairs to pumping station
ACTION 7: CMC to commission moving the fence around the gas tanks as per budget allocation and review financial position towards the end of 2015 to commission painting the lines on the car parks

The meeting was chaired by Jonathan Pope.

1 Minutes of last meeting

1.1 All actions arising from the last meeting were completed – an update on the company's accounts was provided under point 10 of the agenda.

2 Update on Transfer of the Communal Land

2.1 The secretary and directors have been in continuous contact with Thameside's solicitor and provided an update on progress:

- Amending the titles for properties affected by the location of the north side road is progressing and should be simply a matter of completing the required paperwork.
- Dean McCann's solicitor has been in communication with Thameside's solicitor to resolve the access/ownership of the archway.
- There was no progress on the strip of land owned by Martin Darvill on the access road to the farmhouse car park. Thameside's solicitor was informed that the management company would expect this to be resolved before the transfer of the communal areas is completed. Attendees confirmed they were happy with this approach. It was noted that we could force Thameside to resolve this issue by enforcing the mediation agreement and that residents may already have pre-existing rights of access over Martin Darvill's land via an agreement with Liscombe Park Ltd, but that would need to be investigated further if needed.
- Remaining amendments to property titles so they are aligned with *de facto* ownership (garden areas marked in blue previously discussed and cupboard under the archway) are progressing between members concerned and Thameside.

3 Election of Directors

3.1 CMC currently has three directors which are sufficient to operate and so members agreed no change in management was needed. The management can be reviewed if any circumstances change, or at the request of members.

4 Discussion regarding Company Secretary position

4.1 Jonathan Pope indicated that he was happy to carry on as Secretary but that it was timely to confirm if members agreed with this, following the discussion on directors. All agreed he should remain in post.

5 Directors Operational & Fiscal boundaries discussion

5.1 This item was raised by an email from Colin Sutherland, querying the legitimacy of directors to make decisions on behalf of members. Views were sought from members on where the boundary should lie between decisions that can be made by directors and those that should be made by members. It was agreed members should be consulted on new or substantive matters, particularly if they are potentially controversial or sensitive.

5.2 John Jeffers said that CMC was too inflexible by not accepting payments from tenants. Jonathan Pope noted that this approach had previously been discussed and agreed by residents, considering that:

- CMC should not be responsible for invoicing tenants and chasing payments from tenants
- There is no legal relationship between CMC and tenants
- Owners are liable for receiving invoices and making payments to CMC and should manage their lettings accordingly

This position was *again* agreed by the other members present.

6 Finance and Budget Review 2014, Review & Agree 2015 Budget

6.1 Ian Woodland presented the CMC accounts for 2014, which was circulated to members before the meeting. He thanked Kevin Smith for painting and repairing the wood fence in front of the farmhouse, for which CMC reimbursed for the materials. Jonathan Pope had himself paid for the assistance of a book-keeper to assist with preparation of the revised 2012 accounts for Companies House and was not seeking reimbursement. The same book-keeper will also be asked to prepare the CMC accounts for 2013 to submit to Companies House. CMC spent £1,627.56 less in 2014 than the forecast spend, since Thameside paid for the electricity [for lighting and the biofilter], and the road access charge and liability insurance were lower than forecasted. Members had made all payments due to present. There were no comments from members.

6.1.1 In future, residents will be able to see monthly updates of CMC budget, income and expenditure via the Residents Library.

7 2015 Management Charge & Payment options and Vote to move an agreed amount of Under-Budget savings to Sinking Fund

7.1 Ian Woodland presented the forecast spend for 2015 and proposed a management charge of £900 per property. The weed treatment was removed because it did not work, and members proposed organizing days to tidy up the communal areas. The forecast assumed the 2014 underspend should be moved to the sinking fund.

7.2 Ian Morrison proposed retaining the underspent funds for expenses in 2015 and reducing the management change to £800 provided there was agreement that the amount paid for the sinking fund should increase by 10% every year. This proposal was seconded by Eva Speight.

7.3 John Jeffers considered £900 excessive and proposed the same as Ian Morrison without the increase in payments to the sinking fund. No other members supported this proposal.

7.4 The management proposal was supported by six members present at the meeting (Ian Woodland, Ian Bickers, Jonathan Pope, Nigel Hallam, Eva Speight and Kevin Smith) and four members who had sent their apologies (Eileen Davis, Mike Tear, Malcolm Wynd and Alan Pike). Ian Morrison supported his proposal. The management proposal was adopted. Directors undertook to determine the costs of replacing the biofilter and its pumps over its lifespan to assess whether the annual contributions towards the sinking fund is appropriate.

7.5 Ian Woodland proposed that the management charge payment options would be:

7.5.1 Upfront payment in full by the end of January 2015

7.5.2 Half paid upfront by the end of January followed by 10 monthly payments [March to December]

7.5.3 12 monthly payments [January to December]

7.5.4 The management charge invoice to members with payment instructions will be sent in the second half of December.

7.6 Members queried if the cottages would be requested to contribute towards the costs of the biofilter. Jonathan Pope confirmed there was a legal agreement between the cottages and Thameside that required them to make a contribution, however since the transfer had not yet been completed it would be for Thameside to chase payments, and he would be contacting Thameside to ascertain whether they would be requesting payment or whether CMC will do so on their behalf.

ACTION 1: CMC to determine the costs of replacing the biofilter and its pumps over its lifespan to assess whether the annual contributions towards the sinking fund are appropriate

ACTION 2: Ian Woodland to send invoices to members for the 2015 £900 management charge with payment instructions

ACTION 3: Jonathan Pope to contact Thameside with a request that they seek contributions from the cottages towards the costs incurred by CMC for the biofilter (servicing and discharge consent)

9 Deposit Account with HSBC

9.1 It was proposed to move the sinking fund to a savings account, and place the 2014 underspend in another savings account. All present agreed.

ACTION 4: CMC to move the sinking fund to a savings account, and place the 2014 underspend in another savings account

10 Revised Accounts, Appointment of book-keeper for Annual Return

10.1 The revised accounts for 2013 were uploaded to the Residents' Library and CMC proposed to appoint the same book-keeper to prepare the 2014 accounts, which will need to be submitted to Companies House by February 2015. All present agreed.

ACTION 5: CMC to appoint same book-keeper to prepare 2014 accounts for submission to Companies House

11 Farmhouse Freehold Purchase

11.1 This point was discussed at previous meetings and leasehold owners were asked if they wished to comment. There was no change in their position.

12 Gas Safety – Annual Boiler Servicing

12.1 Jonathan Pope noted that each property had a gas boiler which should be serviced annually. This would be mandatory for leaseholders and lettings. It was also noted that the type of condenser-boiler installed breaks down frequently, and that several residents had taken break down cover which includes an annual service.

13 Bio Filter update

13.1 The update was presented under point 6. The biofilter was serviced twice in 2014 and the contractor advised that it should be serviced more often. After several years of insufficient maintenance the pumping station

requires repairs to the pump supports and the biofilter unit may require desludging. This will be addressed in 2015.

ACTION 6: CMC to commission repairs to pumping station

14 Line painting/Estate Fencing for 2015

14.1 It was agreed that the moving of the fence around the gas tanks would be carried out during 2015 as this has been specifically budgeted for in the maintenance section of the earlier agreed budget. The car park lines on the car parks would be carried out towards the end of 2015, provided there were sufficient funds available.

ACTION 7: CMC to commission moving the fence around the gas tanks as per budget allocation and review financial position towards the end of 2015 to commission painting the lines on the car parks

15 Number of meetings per year

15.1 It was agreed that in 2015 at least two meetings will be needed, for an update on the transfer of the communal areas and to approve the budget for 2016.

No other points were raised and the meeting ended at 21.00

16 Residents Library

16.1 Each CMC meeting set of minutes are available in the Residents Library [**CMC Residents Library>CMC Meetings>CMC Meeting Minutes**] To access the Residents Library go to the following address in an internet browser: **www.wel.ly/CMCResidentsLibrary**

16.2 All Financial information including the current year's CMC Budget, Income & Expenditure and next year's Proposed and Agreed Budget can also be found in the Residents Library [**CMC Finances> CMC Budget, Income & Expenditure**]